Amendments & Direct Democracy

Repealing a statute, proposing a statute and changing the Constitution are separate democratic routes.

Article XIII · §13.1–§13.2
Article XVII · §17.1–§17.4

Optional repeal

File within ninety days of enactment. Phase One needs the statutory percentage (0.5–3%) in at least one-third of States and Territories; Phase Two needs five percent nationally, counting earlier signatures. Completion periods are statutory. After verification, referendum within ninety days; a majority repeals. Constitutional obligations remain. Appropriations may be repealed but cannot be amended to a substitute amount by this route.

§13.1 — full provision →

Citizen legislation

Same geographic petition structure, without the repeal filing deadline; Phase Two needs ten percent nationally. The Legislature has ninety days to enact, otherwise referendum follows within ninety more. Sixty percent of votes cast enacts, without a constitutional turnout floor. Initiatives cannot narrow Article I rights, directly appropriate funds or alter taxes, duties or tariffs. Judicial review remains available.

§13.2 — full provision →

Constitutional amendments

Parliamentary proposal: two-thirds of full seated membership in each chamber, then two-thirds of States or two-thirds of votes cast in Popular Ratification. The proposing body selects the path and a fixed ratification period. Citizen amendment: Phase Two fifteen percent nationally; referendum within 180 days; seventy-percent approval. The Constitution sets no amendment-turnout floor.

§17.1 — full provision →

Entrenchment and review

Protected provisions and changes to their substance or effect require Popular Ratification under §17.1(4), including Monitor resources under §3.10. JM consistency review lasts thirty days; ratification can proceed after findings or expiry. Courts review lawful ratification and extinguishment of non-derogable rights. Amendments have no executive veto and operate prospectively. Rejected initiatives generally have a three-year repeat bar; rejected citizen amendments five years, unless materially changed.

§17.3 — full provision →

A theoretical constitutional design project — not the law of any existing nation.